

25STCV21457 25STCV21457

County: los-angeles

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Case Number: 25STCV21457 Hearing Date: July 27, 2026 Dept: 732

Maribel Aceveda Jacinto v. Toyota Motor Sales, U.S.A.,
Inc. , et al.

Monday, July 27, 2026

CASE NUMBER: 25STCV21457

OPPOSED

Defendant Toyota Motor Sales, U.S.A., Inc.'s Demurrer
and Motion to Strike Portions of the

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiff Maribel Acevedo Jacinto ("Plaintiff") purchased a 2022 Toyota Tundra on January 7, 2022., with an express written warranty. (Complaint ¶ 7.) During the warranty period, the vehicle contained or developed defects that the manufacturer was not able to fix. (Complaint ¶¶ 7–15.)

Procedural History: Plaintiffs filed the Complaint on July 21, 2025, alleging six causes of action:

1.

Violation of Civ. Code § 1793.2(d)

2.

Violation of Civ. Code § 1793.2(b)

3.

Violation of Civ. Code § 1793.2(a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent Repair

6.

Fraudulent Inducement – Concealment

On May 18, 2026, this court
denied Defendant's motion for change of venue.

Defendant filed the present
demurrer and motion to strike on November 5, 2025.

Plaintiff filed oppositions on
July 14, 2026.

Defendant filed replies on July
20, 2026.

Analysis:

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its

parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, *supra*, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant Toyota

Motor Sales, U.S.A. Inc. (“Defendant”) demurrers to the sixth cause of action for fraudulent concealment alleged by Plaintiff Maribel Acevedo Jacinto (“Plaintiff”) on the grounds that Plaintiff has failed to plead the existence of a duty to disclose the alleged engine defect in the subject vehicle, and that the claim is barred by the economic loss rule. (Demurrer at pp. 3–11.)

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of its falsity, (3) intent to

defraud, (4) justifiable reliance and (5) resulting damage. (Gil v. Bank of America, Nat. Ass'n (2006) 138 Cal. App. 4th 1371, 1381; Barbara A. v. John G. (1983) 145 C.A.3d 369, 376.)

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]’ [Citation.]” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.) The elements of concealment, as with ordinary fraud, must be pleaded with specificity. (See Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.)

Fraud causes of action must be pleaded with particularity, meaning that the plaintiff must allege “how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

A duty to disclose is pleaded here. Plaintiff alleges that Defendant had exclusive knowledge of the engine defect through various non-public sources, such as “pre- releasing testing data; early consumer complaints about the Engine Defect to Defendant TOYOTA's dealers who are TOYOTA's agents for vehicle repairs; dealership repair orders; testing conducted in response to those complaints; and other internal sources of information possessed exclusively by Defendant TOYOTA and its agents.” (Complaint ¶¶ 57, 63.) It is alleged that Defendant had a “massive database” of information indicating that the fixes it proposed for the defect identified were inadequate. (Complaint ¶ 76.) These facts are adequate to support the allegation that Defendant possessed exclusive knowledge of the defect at issue. (See Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651[identifying “exclusive knowledge” as a basis for the duty to disclose].) It is alleged that Plaintiffs would not have purchased the vehicle had they known of the defect. (Complaint ¶ 72.) And it is alleged that engine defects manifested in Plaintiff's vehicle. (Complaint ¶ 12.) Thus a concealment claim is alleged.

Defendant argues that there was

no transactional relationship between the manufacturer and Plaintiffs such that Defendants owed a duty to disclose the alleged defect. (Demurrer at pp. 5–6; see *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312 [transaction giving rise to duty to disclose “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”].) But Plaintiffs allege such a transaction here, as they allege that Defendant provided them with the warranty contract which they are alleged to have breached. (Complaint ¶ 7.)

Defendant argues that the fraud claim is barred by the economic loss rule, as Plaintiffs have alleged only economic losses arising from the failure of their warranty contract, and thus cannot recover in tort. (Demurrer at pp. 10–11.) Defendant neglects that “tort damages have been permitted in contract cases . . . where the contract was fraudulently induced.” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 990.) As Plaintiff alleges that the purchase of the vehicle was the product of fraudulent concealment, the economic loss rule does not apply.

The demurrer is therefore
OVERRULED.

II. MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1)). The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. (California Rules of Court Rule 3.1322.)

The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a)). The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or

an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

Defendant moves to strike the prayer for punitive damages from the Complaint, on the grounds that Plaintiff has not alleged a fraud claim sufficient to invoke Civil Code § 3294, and on the grounds that the Complaint does not allege corporate direction or ratification under the same statute. (Motion at pp. 4–7.)

Punitive damages are allowed in non-contract cases when a defendant is guilty of “oppression, fraud, or malice . . .” (Civ. Code § 3294, subd. (a).) The terms are defined as:

1.

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2.

“Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3.

“Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294, subd. (c).)

Something more than the mere commission of a tort is always required for punitive damages. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894.) Proof of negligence, gross negligence, or recklessness is insufficient to warrant an award of punitive damages. (Dawes v. Sup.Ct. (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) Punitive damages may be recovered in an action for negligence or other nonintentional torts if the plaintiff pleads and proves that the defendant acted with the state of mind

described as “conscious disregard” of the potential dangers to others. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) When malice is based on a defendant’s conscious disregard of Plaintiff’s rights, the conduct must be both despicable and willful. (College Hospital v. Superior Court (1994) 8 Cal.4th 794, 713 (“College Hospital”).)

Although Defendant argues that the allegations in the Complaint fall short of the above threshold, as discussed above, Plaintiff adequately alleges a claim for fraud, which places their prayer for punitive damages within the ambit of Civil Code § 3294.

Plaintiffs have not, however, alleged that the offending conduct was directed or ratified by Defendant’s directors or managing agents, as required when making such allegations against a corporate employer under Civil Code § 3294, subd. (b).

Accordingly, the motion to strike is GRANTED with leave to amend as to the prayer for punitive damages.

Superior Court of California

County of Los Angeles

Department 732

MARIBEL ACEVEDO JACINTO,

Plaintiffs,

v.

TOYOTA MOTOR SALES U.S.A, LLC, et
al.,

Defendants.

Case No.:
25STCV21457

Hearing Date: July 27, 2026

[TENTATIVE] RULING RE:

Defendant Toyota Motor Sales, U.S.A., Inc.'s Demurrer and Motion
to Strike Portions of the Complaint

Defendant

Toyota Motor Sales, U.S.A., Inc.'s Demurrer and Motion to Strike Portions of
the Complaint is OVERRULED, and GRANTED with leave to amend as to the prayer
for punitive damages. Any amended pleading shall be filed within 20 days of
this order.

Plaintiff to provide notice.

Dated: July 27, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court